

**Superior Court of the State of California
County of Orange**

**Hon. ANDRE MANSSOURIAN
Department C12 – (657) 622-5212**

TENTATIVE RULINGS

Court will make every effort to post tentative rulings by approximately 3:00 p.m. on the court day before the date the motion is to be heard.

If the parties agree to submit on the Court's tentative ruling, please call Department C12 directly to inform the court that **all parties** submit to the Court's tentative ruling.

Reminder: Court does NOT provide court reporters.

No filings or briefs of any kind will be accepted after the tentative ruling is posted.

Parties are welcome to be present in court for the law and motion calendar or appear by Zoom. To make an appearance via Zoom please click the following link. If you are unable to log in, please call the department for an alternative arrangement. <https://www.occourts.org/civil-remote-hearings>.

August 21, 2026

#	Case Name	Tentative
1.	First American Title Insurance Company vs. Yarbrough 25-01486497	Motion to Be Relieved as Counsel of Record (X2) The motions by Robert C. Chandler, Chandler Law Firm, to withdraw as counsel for defendant Phillip Yarbrough (1) individually and (2) as Trustee of the Columbia Street Living Trust 2022, are GRANTED, effective upon filing proof of service of the signed orders on the clients. Moving Counsel to inform clients of all future court dates. Moving Counsel to give notice.

2.	Woodson vs. The Estate of Rebecca Woodson (Dec'd) 24-01393092	1. Demurrer to Complaint 2. Case Management Conference O/C Dismissal Filed
3.	Ruskey vs. Salman 24-01416981	Demurrer NTS filed August 6, 2026. ROA 162 OSC re: Dismissal of Settled Case set for December 3, 2026. ROA 165
4.	Nguyen vs. Ottoni 25-01535128	1. Motion to Compel Answers to Form Interrogatories 2. Motion to Compel Answers to Special Interrogatories 3. Motion to Compel Production 4. Motion to Deem Facts Admitted Plaintiff Leeanna Nguyen’s Motions to Compel Defendant Bruno Ottoni’s responses to Special Interrogatories, Set One; Form Interrogatories, Set One; Request for Production of Documents, Set One; and Motion to Deem Request for Admissions, Set One are DENIED. Discovery must be served on a party by mail, Express Mail, overnight mail, and electronic means at the party’s last known office or residential address. (Code Civ. Proc. §, 1013.) When a party is represented by counsel, the service of papers, when required, must be upon the attorney instead of the party. (Code Civ. Proc., § 1015.) On January 20, 2026, prior to appearing in this action, Plaintiff served Defendant with the discovery by mail at 7415 Blackhawk Circle, Buena Park, CA 90620. Defendant asserts he did not reside at that address at the time of service. Rather, his address was 8830 Academy Drive, Unit B, Buena Park, CA 90621. Defendant appeared in this action on February 10, 2026, by serving an Answer through his counsel of record. On February 12, 2026, Plaintiff emailed Defendant’s counsel with a “courtesy copy” of the discovery. Therefore, Plaintiff asserts Defendant has waived any service defect by accepting service through his counsel. A courtesy copy sent to counsel does not constitute an independent act of service. (See <i>Hern v. Howard</i> (2009) 177 Cal.App.4th 1193, 1204-1205 [the trial court’s direction to provide a courtesy copy did not extend time for the attorney to respond to the summons and complaint

		as it did not constitute a separate, independent act of service.].) Because service of the discovery was defective, Defendant was justified in not timely responding to the discovery. Ultimately, Defendant provided responses to the discovery on August 6, 2026, and waived the defective service. Thus, the motion to compel responses to the discovery at issue is moot. Plaintiff contends that that the motion is not moot with respect to sanctions. The Code provides that the court shall impose monetary sanctions against any party or attorney who unsuccessfully opposes a motion to compel unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., §§ 2030.300, 2031.300, 2033.280.) In this case, the Court finds Defendant was substantially justified in not providing timely responses due to the defective service. Accordingly, the motions are DENIED in their entirety, including as to sanctions. Moving Party to give notice.
5.	Coronado vs. Sub-zero Excavating, Incorporated 25-01472342	1. Motion to Compel Answers to Special Interrogatories 2. Motion to Compel Further Responses to Form Interrogatories 3. Motion to Compel Production 4. Motion to Compel Response to Requests for Admissions 5. Case Management Conference <u>Motion to Compel Responses to Form Interrogatories</u> Defendant Sub-Zero Excavating, Inc.'s (Sub-Zero) motion to compel responses to its first set of form interrogatories is CONTINUED to October 5, 2026, at 1:30 p.m. in Department CM02 in Costa Mesa. Sub-Zero is ORDERED to file a copy of the notice of motion and motion to compel responses to its first set of form interrogatories, before August 31, 2026. At this time, a copy of the motion does not appear in the record. It appears Sub-Zero may have inadvertently filed a second, duplicate copy of its counsel's supporting declaration (see ROA Nos. 112, 125) instead of the subject notice of motion and motion.

		<u>Motions to Compel Responses to Special interrogatories and Requests for Production, and Motion to Deem Matters Admitted</u> Defendant Sub-Zero Excavating, Inc.'s motions to compel responses to its first sets of special interrogatories and requests for production, and to deem the matters admitted in its first set of requests for admission, are DENIED AS MOOT to the extent they seek an order compelling responses or deeming matters admitted. Plaintiff Alberto Palomera Coronado served verified responses to the requests for admission roughly 1.5 hours after these motions were filed (see Hanassab Decl. ¶¶ 11-12, Ex. A [email serving the responses at 3:51 p.m. on 4/7/26]), and served verified responses to the special interrogatories and requests for production on 8/10/26. (<i>Id.</i> ¶ 20, Ex. C.) Sanctions remain at issue. (Cal. Rules of Court, rule 3.1348(a).) Sanctions are GRANTED in the total amount of \$4,980 (or \$1,660 per motion) against plaintiff only, payable within 30 days of notice. (See Code Civ. Proc., §§ 2030.290, subd. (c), 2031.300, subd. (c), 2033.280, subd. (c).) The Case Management Conference is CONTINUED to January 14, 2027, at 9:30 a.m. in Department C12. Defendant Sub-Zero shall give notice of all of the above.
6.	Beijing Luode Property Management Co., Ltd. vs. Qin 26-01542885	1. Motion for Attorney Fees 2. Motion to Dismiss
7.	Tran vs. Ali Sadeghi M.D. Inc. 25-01509640	Motion to Enforce Settlement Plaintiff Hannah Khanh Tran's motion to enforce settlement is GRANTED, in the amount of \$126.04 in unpaid interest. (Code Civ. Proc., § 664.6 [authorizing motion]; Ex. A to moving papers, §§ 2, 15.) Moving party is also granted \$2,910.00 in fees and costs. (<i>Osumi v. Sutton</i> (2007) 151 Cal.App.4th 1355, 1361 [fees/costs authorized if provided for in settlement agreement]; Ex. A to moving papers, § 15.) Moving party has shown that one of the two initial payments due, in the amount of \$20,000.00, was not paid by its initial due date, nor by

the 4-7-26 deadline imposed by moving party's notice and demand to cure. (Park Decl., ¶¶ 2-5; Ex. A to moving papers, § 2 [payment schedule]; Ex. B to moving papers, 3-31-26 Park email ["If payment is not in the Westminster office by April 7 close of business, my client will exercise the acceleration clause in Paragraph 14 and also seek her attorney's fees pursuant to Paragraph 15"].)

The missing \$20,000.00 payment was received on 4-10-26, and the remaining payments were all paid on or before their respective due dates. (Ex. A to moving papers, § 2 [payment schedule]; Sadeghi Decl., ¶¶ 6-7; Naddour Decl., ¶¶ 4-5; Hattendorf Reply Decl., ¶ 4 [acknowledging receipt of payments on 4-10-26, 5-18-26, 6-15-26, and 7-13-26].) Accordingly, the full settlement amounts have been paid.

Moving party seeks interest on the entire unpaid balance, due to the acceleration clause. (Ex. A to moving papers, § 14 [default and acceleration]; see also Hattendorf Reply Decl., ¶ 6.) However, as to interest, the settlement agreement provides: "Interest on any unpaid amounts shall accrue at the rate of ten percent (10%) per annum from the date such amounts were originally due until paid in full." (Ex. A to moving papers, § 15; emphasis added.) Only the first \$20,000.00 payment was late; all other payments were made on or before the date they were "originally" due. Thus, moving party is entitled to interest on the missed \$20,000.00 payment for the period of 3-18-26, when it was "originally due," until 4-10-26, when it was "paid in full," i.e. 23 days. The court calculates this amount as \$126.04, based on daily interest at 10% per annum (\$5.48 per day).

Moving party is also granted \$2,910.00 in fees and costs, which amount the court finds were reasonably and necessarily incurred. The court has reduced the hourly rates to \$300.00/hour for attorney Yerzinkian, \$450.00/hour for attorney Hattendorf, and \$600.00/hour for attorney Park, which are more commensurate with prevailing rates in the Orange County market. (*Syers Properties III, Inc. v. Rankin* (2014) 226 Cal.App.4th 691, 700 ["market rate" fee determination "is generally based on the rates prevalent in the community where the court is located"]; *Nishiki v. Danko Meredith, APC* (2018) 25 Cal.App.5th 883, 899 ["a trial court has its own expertise in the value of legal services performed in a case ... and it may rely on its own familiarity with the local legal market in setting the hourly rate"].) The court has also reduced the hours for motion preparation, which appear to the Court to be slightly excessive for this relatively straightforward motion.

Moving Plaintiff shall give notice.

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